

DRAFT — NOT YET AGREED OR EXECUTED

Every highlighted field below is an outstanding commercial term that must be supplied by the parties. This document has no effect until it has been dated and signed by both parties. It must not be relied on, submitted or produced to any third party in its present form.

SERVICES AGREEMENT

Software development and maintenance services

THIS AGREEMENT is dated 29 July 2026.

PARTIES

(1) Md Muzahidul Islam, an individual trading as a sole practitioner, of Bissonathpur, Sheikpura, Kotwali, Dinajpur 5200, Bangladesh

(the “**Contractor**”)

(2) Vesopa EPOS Limited, a company incorporated in England and Wales under company number **[COMPANY NUMBER]**, whose registered office is at 1 High Street, Pontardawe, Swansea, SA8 4HU, United Kingdom

(the “**Client**”)

each a “**Party**” and together the “**Parties**”.

BACKGROUND

(A) The Client operates an electronic point-of-sale software business supplying the hospitality and retail sectors in the United Kingdom under the “Vesopa EPOS” name.

(B) The Contractor is an independent software developer engaged in the design, development, deployment and maintenance of the Client’s software platform.

(C) The Contractor has provided such services to the Client since **[COMMENCEMENT DATE]**, and the Parties now wish to record the terms on which those services are and continue to be provided.

1. DEFINITIONS AND INTERPRETATION

1.1 “Business Day” means a day other than a Saturday, Sunday or public holiday in England and Wales.

1.2 “Deliverables” means all software, source code, documentation and other materials created by the Contractor in the course of providing the Services.

1.3 “Platform” means the Vesopa EPOS software platform described in Schedule 1.

1.4 “Services” means the services set out in Schedule 1.

1.5 Clause headings are for convenience only and do not affect interpretation. References to a statute include any amendment or re-enactment of it.

2. ENGAGEMENT AND TERM

- 2.1 The Client engages the Contractor, and the Contractor agrees, to provide the Services on the terms of this Agreement.
- 2.2 This Agreement takes effect on [COMMENCEMENT DATE] (the “**Commencement Date**”) and continues on a rolling monthly basis until terminated in accordance with clause 8.
- 2.3 The Parties acknowledge that the Services have been provided from the Commencement Date and that this Agreement records terms already in operation between them.

3. THE SERVICES

- 3.1 The Contractor shall provide the Services described in Schedule 1 with reasonable skill and care and in accordance with good industry practice.
- 3.2 The Contractor shall determine the manner, method and hours of performance of the Services, subject to meeting any delivery dates agreed in writing with the Client.
- 3.3 The Contractor shall provide the Services remotely and is not required to attend any premises of the Client.
- 3.4 The Contractor may not subcontract any part of the Services without the Client’s prior written consent, such consent not to be unreasonably withheld.

4. FEES AND PAYMENT

- 4.1 In consideration of the Services, the Client shall pay the Contractor a retainer of [MONTHLY RETAINER] per calendar month (the “**Retainer**”), exclusive of any applicable taxes.
- 4.2 The Contractor shall issue an invoice to the Client on the last Business Day of each calendar month. The Client shall pay each undisputed invoice within 14 days of receipt.
- 4.3 All sums are payable in GBP by electronic transfer to the bank or payment account nominated by the Contractor in writing from time to time.
- 4.4 Where the Services are provided for part of a calendar month only, the Retainer shall be apportioned on a daily basis.
- 4.5 The Contractor is responsible for accounting for and paying all taxes, levies and social security contributions arising in respect of the Retainer in the Contractor’s country of residence.
- 4.6 The Client may not withhold or set off any sum payable under this Agreement except in respect of an amount genuinely and reasonably disputed, notice of which has been given in writing before the due date.

5. STATUS OF THE CONTRACTOR

- 5.1 The Contractor is an independent contractor and nothing in this Agreement creates a relationship of employer and employee, partnership, joint venture or agency between the Parties.
- 5.2 The Contractor is not entitled to any employment benefits from the Client, including holiday pay, sick pay or pension contributions.

- 5.3** The Contractor is free to provide services to other clients, provided doing so does not conflict with clause 6 or with the proper performance of the Services.

6. CONFIDENTIALITY

- 6.1** Each Party shall keep confidential all non-public information of the other Party disclosed in connection with this Agreement, including source code, credentials, customer data, pricing and business plans.
- 6.2** Clause 6.1 does not apply to information that is or becomes public through no breach of this Agreement, was lawfully known before disclosure, or is required to be disclosed by law or a competent authority.
- 6.3** The obligations in this clause 6 survive termination of this Agreement for a period of five years.

7. DATA PROTECTION AND SECURITY

- 7.1** Where the Contractor processes personal data on behalf of the Client, the Client is the controller and the Contractor is the processor for the purposes of the UK General Data Protection Regulation and the Data Protection Act 2018.
- 7.2** The Contractor shall process such personal data only on the Client's documented instructions, shall implement appropriate technical and organisational measures to protect it, and shall ensure that any person authorised to process it is bound by an obligation of confidentiality.
- 7.3** The Contractor shall notify the Client without undue delay on becoming aware of any personal data breach, and shall assist the Client in responding to it.
- 7.4** The Parties acknowledge that the Contractor is located outside the United Kingdom and that any transfer of personal data to the Contractor shall be made subject to an appropriate transfer mechanism recognised under UK data protection law.
- 7.5** On termination, the Contractor shall at the Client's written direction delete or return all personal data processed on the Client's behalf, save to the extent retention is required by law.

8. TERMINATION

- 8.1** Either Party may terminate this Agreement at any time by giving 30 days' written notice to the other.
- 8.2** Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach which is irremediable, or which it fails to remedy within 14 days of written notice requiring it to do so.
- 8.3** Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters into any arrangement with its creditors, or ceases to carry on business.
- 8.4** On termination the Client shall pay the Contractor for all Services performed up to the termination date, and the Contractor shall deliver up all Deliverables, credentials and Client materials in the Contractor's possession.
- 8.5** Termination does not affect any right or liability accrued before the termination date.

9. WARRANTIES AND LIABILITY

- 9.1 Each Party warrants that it has full power and authority to enter into and perform this Agreement.
- 9.2 Nothing in this Agreement limits or excludes either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability which cannot lawfully be limited.
- 9.3 Subject to clause 9.2, neither Party is liable to the other for loss of profit, loss of business, loss of anticipated savings, or any indirect or consequential loss.
- 9.4 Subject to clause 9.2, each Party's total aggregate liability arising under this Agreement in any twelve-month period is limited to the total Retainer paid or payable in that period.

10. FORCE MAJEURE

- 10.1 Neither Party is liable for any failure or delay in performing its obligations to the extent caused by an event beyond its reasonable control, including failure of telecommunications or power networks, civil unrest, natural disaster or governmental action.
- 10.2 If such an event continues for more than 30 days, either Party may terminate this Agreement by written notice.

11. GENERAL

- 11.1 **Entire agreement.** This Agreement constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior arrangements, whether written or oral.
- 11.2 **Variation.** No variation of this Agreement is effective unless made in writing and signed by both Parties.
- 11.3 **Assignment.** Neither Party may assign or transfer any of its rights or obligations without the other's prior written consent.
- 11.4 **Severance.** If any provision is found to be invalid or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, and the remaining provisions continue in force.
- 11.5 **Waiver.** No failure or delay in exercising any right constitutes a waiver of it.
- 11.6 **Notices.** Notices must be in writing and sent to the address of the receiving Party set out above, or to such email address as that Party has notified in writing for the purpose.
- 11.7 **Third parties.** A person who is not a Party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement.
- 11.8 **Counterparts.** This Agreement may be executed in counterparts, each of which is an original and which together constitute one agreement. An executed counterpart transmitted electronically is valid.
- 11.9 **Governing law and jurisdiction.** This Agreement and any dispute arising out of it are governed by the law of England and Wales, and the Parties submit to the exclusive jurisdiction of the courts of England and Wales.

SCHEDULE 1 — THE SERVICES

The Contractor provides the design, development, deployment and ongoing maintenance of the Vesopa EPOS software platform, comprising the following components.

1. POINT-OF-SALE APPLICATION

A cross-platform till application for Windows, macOS, iOS and Android providing counter and table service, order and bill management, split and part payment, discounts and voids, promotional and mix-and-match pricing, customer and loyalty handling, integrated card payment via Dojo terminals, offline trading with an outbox that reconciles to the server on reconnection, and receipt and kitchen ticket printing.

2. BACK OFFICE WEB APPLICATION

A management application providing live sales reporting and dashboards, sales, till and bill reporting with PDF export, product and stock management, till programming (departments, groups, tax rates, finalise keys and error reasons), a floor and table designer, receipt design, staff and clerk administration, commerce functions covering promotions, gift cards, deposits, vouchers and loyalty, and multi-site administration.

3. PUBLIC WEBSITE AND COMMERCE

The public website at vesopaepos.com, including marketing pages, enquiry and demo request handling, transactional email, subscription checkout with payment provider integration, and the associated administration panel.

4. MAINTENANCE AND SUPPORT

Corrective maintenance and defect resolution; security patching and dependency maintenance; database administration, migration and backup verification; release management and deployment to the Client's production environment; and technical support to the Client's staff in relation to the Platform.

SCHEDULE 2 — FEES

Monthly retainer	[MONTHLY RETAINER] per calendar month, exclusive of applicable taxes
Currency	GBP
Invoicing	On the last Business Day of each calendar month
Payment terms	14 days from receipt of invoice
Payment method	Electronic transfer to the account nominated by the Contractor in writing
Expenses	Pre-approved third-party costs (hosting, developer programme fees, certificates) recharged at cost against receipts
Review	The Retainer may be reviewed by agreement in writing between the Parties

EXECUTION

The Parties have entered into this Agreement on the date stated at the beginning of it.

SIGNED BY THE CONTRACTOR

SIGNED FOR AND ON BEHALF OF THE CLIENT

Signature

Signature

Md Muzahidul Islam

Name and position — duly authorised for and on behalf of
Vesopa EPOS Limited

Date

Date